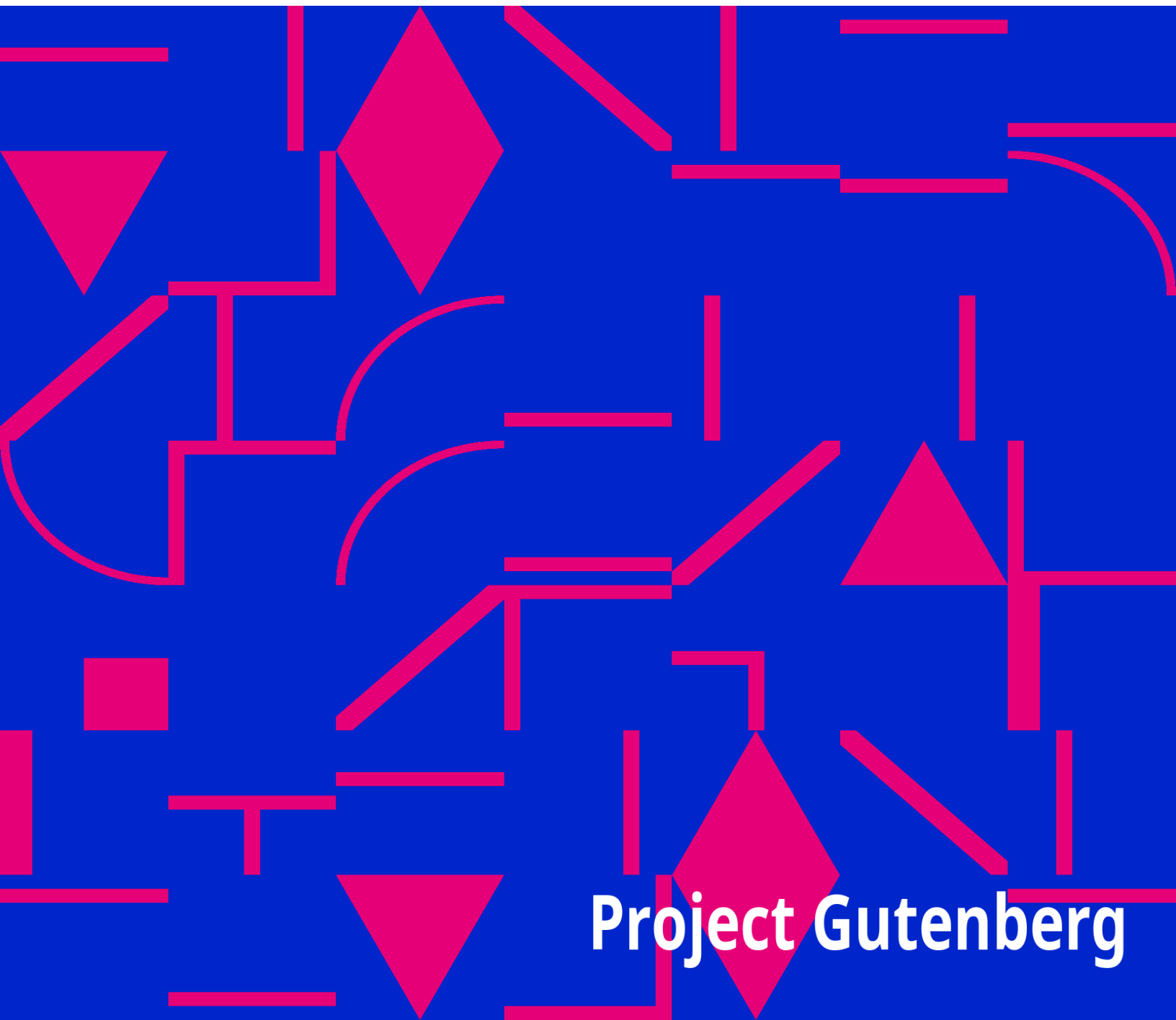


Chambers's Edinburgh Journal, No. 442

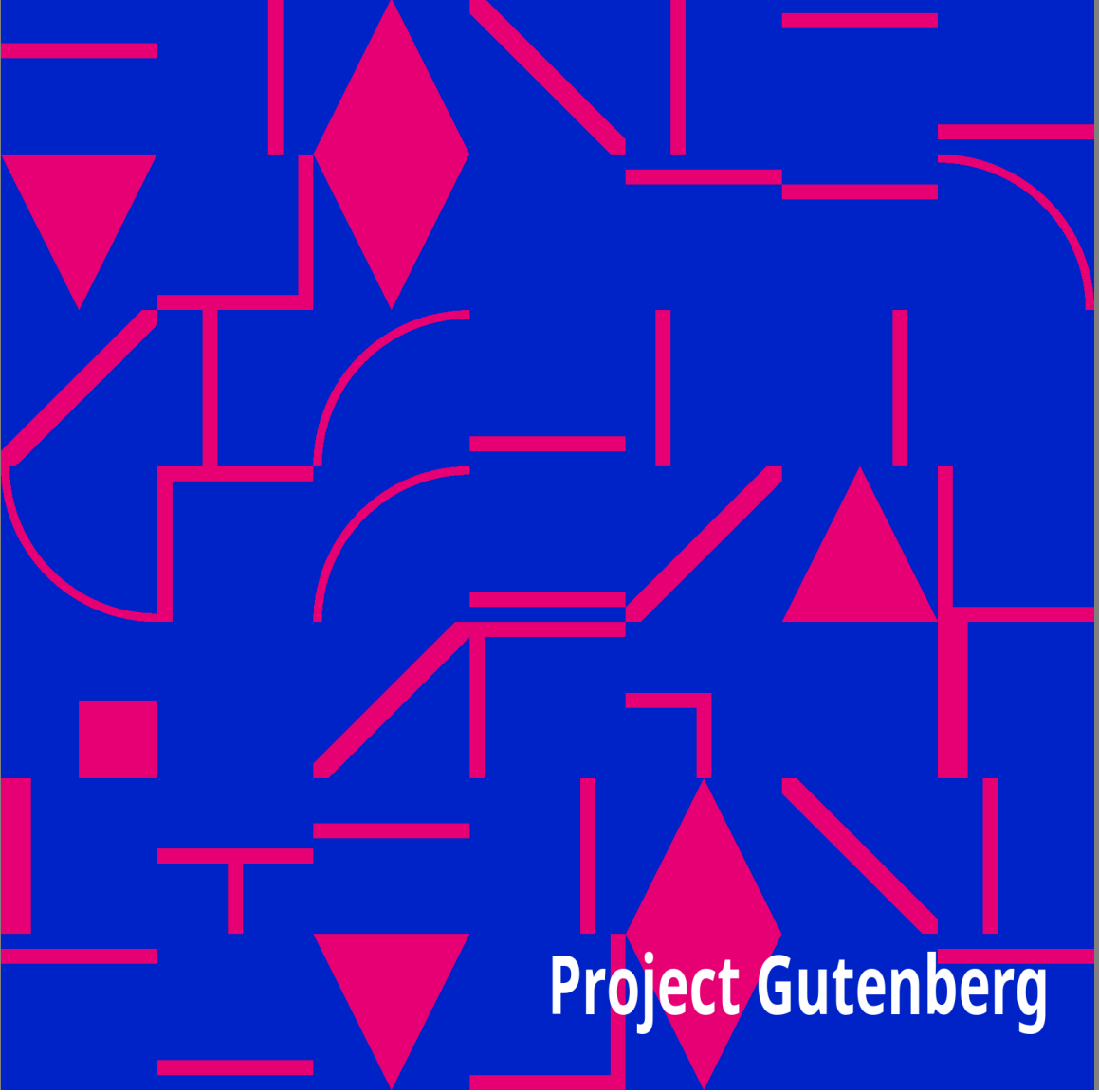
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Title: Chambers's Edinburgh Journal, No. 442

Author: Various

Editor: Robert Chambers
William Chambers

Release date: March 10, 2007 [eBook #20792]

Language: English

Other information and formats: www.gutenberg.org/ebooks/20792

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CHAMBERS' EDINBURGH JOURNAL

CONTENTS

THE OLD HOUSE IN CRANE COURT.
THE HUNCHBACK OF STRASBOURG.
PHILOSOPHY OF THE SHEARS.
THE NIGHTINGALE:
THE TEA-COUNTRIES OF CHINA.
THE GREAT OYER OF POISONING.
NEURALGIA.
ANCIENT GLACIERS IN THE LAKE
COUNTRY.



CONDUCTED BY WILLIAM AND ROBERT CHAMBERS,
EDITORS OF 'CHAMBERS'S INFORMATION FOR THE PEOPLE,'
'CHAMBERS'S EDUCATIONAL COURSE,' &c.

No. 442. NEW SERIES. SATURDAY, JUNE 19, 1852. PRICE 1½d.

THE OLD HOUSE IN CRANE COURT.

[Return to Table of Contents](#)

THE roaring pell-mell of the principal thoroughfares of London is curiously contrasted with the calm seclusion which is often found at no great distance in certain lanes, courts, and passages, and the effect is not a little heightened when in these by-places we light upon some old building speaking of antique institutions or bygone habits of society. We lately had this idea brought strikingly before us on plunging abruptly out of Fleet Street into Crane Court, in search of the establishment known as the Scottish Hospital. We were all at once transferred into a quiet narrow street, as it might be called, full of printing and lithographic offices, tall, dark, and rusty, while closing up the further end stood a dingy building of narrow front, presenting an ornamental porch. A few minutes served to introduce us to a moderate-sized hall, having a long table in the centre, and an arm-chair at the upper end, while several old portraits graced the walls. It was not without a mental elevation of feeling, as well as some surprise, that we learned that this was a hall in which Newton had spent many an evening. It was, to be quite explicit, the meeting-place of the Royal Society from 1710 till 1782, and, consequently, during not much less than twenty years of the latter life of the illustrious author of the *Principia*, who, as an office-bearer in the institution, must have often taken an eminent place here. We were not, however, immediately in quest of the antiquities of the Royal Society. Our object was to form some acquaintance with the valuable institution which has succeeded to it in the possession of this house.

We must advert to a peculiarity of our Scottish countrymen, which can be set down only on the credit side of their character—their sympathy with each other when they meet as wanderers in foreign countries. Scotland is just a small enough country to cause a certain unity of feeling amongst the people. Wherever they are, they feel that Scotsmen should stand, as their proverb has it, *shoulder to shoulder*. The more distant the clime in which they meet, they remember with the more intensity their common land of mountain and flood, their historical and poetical associations, the various

national institutions which ages have endeared to them; and the more disposed are they to take an interest in each other's welfare. This is a feeling in which time and modern innovations work no change, and it is one of old-standing.

When James VI. acceded to the throne of Elizabeth, he was followed southward by some of his favourite nobles, and there was of course an end put to that exclusive system of the late monarch which had kept down the number of Scotsmen in London, to what must now appear the astonishingly small one of fifty-eight. Perhaps some exaggerations have been indulged in with regard to the host of traders and craftsmen who went southward in the train of King James, but there can be no doubt, that it was considerable in point of numbers. But where wealth is sought for, there also, by an inevitable law of nature, is poverty. The better class of Scotchmen settled in London, soon found their feelings of compassion excited in behalf of a set of miserable fellow-countrymen who had failed to obtain employment or fix themselves in a mercantile position, and for whom the stated charities of the country were not available. Hence seems to have arisen, so early as 1613, the necessity for some system of mutual charity among the natives of Scotland in London. So far as can be ascertained, it was a handful of journeymen or hired artisans, who in that year associated to aid each other, and prevent themselves from becoming burdensome to strangers—an interesting fact, as evincing in a remote period the predominance of that spirit of independence for which the modern Scottish peasantry has been famed, and which even yet survives in some degree of vigour, notwithstanding the fatally counteractive influence of poor-laws. The funds contributed by these worthy men were put into a box, and kept there—for in those days there were no banks to take a fruitful charge of money—and at certain periods the contributors would meet, and see what they could spare for the relief of such poor fellow-countrymen as had in the interval applied to them. We have still a faint living image of this simple plan in the *boxes* belonging to certain trades in our Scottish towns, or rather the survivance of the phrase, for the money, we must presume, is now everywhere relegated to the keeping of the banks. The institution in those days was known as the SCOTTISH BOX, just as a money-dealing company came to be called a bank, from the table (*banco*) which it employed in transacting its business. From a very early period in its history, it seems to have taken the form of what is

now called a Friendly Society, each person contributing an entrance-fee of 5s., and 6d. per quarter thereafter, so as to be entitled to certain benefits in the event of poverty or sickness. Small sums were also lent to the poorer members, without interest, and burial expenses were paid. We find from the records that, in 1638, when the company was twenty in number, and met in Lamb's Conduit Street, it allowed 20s. for a certain class of those of its members who had died of the plague, and 30s. for others. The whole affair, however, was then on a limited scale—the quarterly disbursements in 1661 amounting only to L.9, 4s. Nevertheless, upwards of 300 poor Scotsmen, swept off by the pestilence of 1665-6, were buried at the expense of the Box, while numbers more were nourished during their sickness, without subjecting the parishes in which they resided to the smallest expense. We have not the slightest doubt, that not one of these people felt the bitterness of a dependence on alms. If not actually entitled to relief in consideration of previous payments of their own, they would feel that they were beholden only to their kindly countrymen. It would be like the members of a family helping each other. Humiliation could have been felt only, if they had had to accept of alms from those amongst whom they sojourned as strangers. Such is the way, at least, in which we read the character of our countrymen.

In the year 1665, the Box was exalted into the character of a corporation by a royal charter, the expenses attendant on which were disbursed by gentlemen named Kinnear, Allen, Ewing, Donaldson, &c. When they met at the Cross Keys in 'Coven Garden,' they found their receipts to be L.116, 8s. 5d. The character of the times is seen in one of their regulations, which imposed a fine of 2s. 6d. for every oath used in the course of their quarterly business. The institution was now becoming venerable, and, as usual, members began to exhibit their affection for it by presents. The Mr Kinnear just mentioned, conferred upon it an elegant silver cup. James Donaldson presented an ivory mallet or hammer, to be used by the chairman in calling order. Among the contributors, we find the name of Gilbert Burnet (afterwards Bishop) as giving L.1 half-yearly. They had an hospital erected in Blackfriars Street; but experience soon proved that confinement to a charity workhouse was altogether uncongenial to the feelings and habits of the Scottish poor, and they speedily returned to the plan of assisting them by small outdoor pensions, which has ever since been adhered to. In those days, no effort was made to secure permanency by a sunk fund. They

distributed each quarter-day all that had been collected during the preceding interval. The consequence of this not very Scotsman-like proceeding was that, in one of those periods of decay which are apt to befall all charitable institutions, the Scottish Hospital was threatened with extinction; and this would undoubtedly have been its fate, but for the efforts of a few patriotic Scotsmen who came to its aid.

Through the help of these gentlemen, a new charter was obtained (1775), putting the institution upon a new and more liberal footing, and at the same time providing for the establishment of a permanent fund. Since then, through the virtue of the national spirit, considerable sums have been obtained from the wealthier Scotch living in London, and by the bequests of charitable individuals of the nation; so that the hospital now distributes about L.2200 per annum, chiefly in L.10 pensions to old people.^[1] At the same time, a special bequest of large amount (L.76,495) from William Kinloch, Esq., a native of Kincardineshire, who had realised a fortune in India, allows of a further distribution through the same channel of about L.1800, most of it in pensions of L.4 to disabled soldiers and sailors. Thus many hundreds of the Scotch poor of the metropolis may be said to be kept by their fellow-countrymen from falling upon the parochial funds, on which they would have a claim—a fact, we humbly think, on which the nation at large may justifiably feel some little pride. As part of the means of collecting this money, there is a festival twice a year, usually presided over by some Scottish nobleman, and attended by a great number of gentlemen connected with Scotland by birth or otherwise. A committee of governors meets on the second Wednesday of every month, to distribute the benefactions to the regular pensioners and casual applicants; and, in accordance with the national habits of feeling, this ceremony is always prefaced by divine service in the chapel, according to the simple practice of the Presbyterian Church. Since 1782, these transactions, as well as the general concerns of the institution, have taken place in the old building in Crane Court, where also the secretary has a permanent residence.

Such, then, is the institution which has succeeded to the possession of the dusky hall in which the Royal Society at one time assembled. It was with a mingled interest that we looked round it, reflecting on the presence of such men as Newton and Bradley of old, and on the many worthy deeds which

had since been done in it by men of a different stamp, but surely not unworthy to be mentioned in the same sentence. A portrait of Queen Mary by Zuccherro, and one of the Duke of Lauderdale by Lely—though felt as reminiscences of Scotland—were scarcely fitted of themselves to ornament the walls; but this, of course, is as the accidents of gifts and bequests might determine. We felt it to be more right and fitting, that the secretary should be our old friend Major Adair, the son of that Dr Adair who accompanied Robert Burns on his visit to Glendevon in 1787. He is one of those men of activity, method, and detail, joined to unfailing good-humour, who are invaluable to such an institution. He is also, as might be expected, entirely a Scotsman, and evidently regards the hospital with feelings akin to veneration. Nor could we refrain from sympathising in his views, when we thought of the honourable national principle from which the institution took its rise, and by which it continues to be supported, as well as the practical good which it must be continually achieving. To quote his own words: 'From a view of the numbers relieved, it is evident, that while this institution is a real blessing to the aged, the helpless, the diseased, and the unemployed poor of Scotland, resident in London, Westminster, and the neighbourhood, extending to a circle of ten miles radius from the hall of the corporation, it is of incalculable benefit to the community at large, who, by means of this charity, are spared the pain of beholding so great an addition, as otherwise there would be, of our destitute fellow-creatures seeking their wretched pittance in the streets, liable to be taken up as vagrants and sent to the house of correction, and probably subjected to greater evils and disgrace.' The major has a pet scheme for extending the usefulness of the institution. It implies that individuals should make foundations of from L.300 to L.400 each, in order to produce pensions of L.10 a year; these to be in the care and dispensation of the hospital, and each to bear for ever the name of its founder; thus permanently connecting his memory with the institution, and insuring that once a year, at least, some humble fellow-countryman shall have occasion to rejoice that such a person as he once existed. The idea involves the gratification of a fine natural feeling, and we sincerely hope that it will be realised. And why, since we have said so much, should we hesitate to add the more general wish, that the Scottish Hospital may continue to enjoy an undiminished measure of the patronage of our countrymen? May it flourish for ever!

FOOTNOTES:

[1] *Note by an Englishman.*—It is not one of the least curious particulars in the history of the Scottish Hospital, that it substantiates by documentary evidence the fact, that Scotsmen, who have gone to England, occasionally find their way back to their own country. It appears from the books of the corporation, that in the year ending 30th November 1850, the sum of L.30, 16s. 6d. was spent in 'passages' from London to Leith; and there is actually a corresponding society in Edinburgh to receive the *revenants*, and pass them on to their respective districts.

THE HUNCHBACK OF STRASBOURG.

[Return to Table of Contents](#)

IN the department of the Bas-Rhin, France, and not more than about two leagues north of Strasbourg, lived Antoine Delessert, who farmed, or intended farming, his own land—about a ten-acre slice of 'national' property, which had fallen to him, nobody very well knew how, during the hurly-burly of the great Revolution. He was about five-and-thirty, a widower, and had one child, likewise named Antoine, but familiarly known as Le Bossu (hunchback)—a designation derived, like his father's acres, from the Revolution, somebody having, during one of the earlier and livelier episodes of that exciting drama, thrown the poor little fellow out of a window in Strasbourg, and broken his back. When this happened, Antoine, *père*, was a journeyman *ferblantier* (tinman) of that city. Subsequently, he became an active, though subordinate member of the local Salut Public; in virtue of which patriotic function he obtained Les Près, the name of his magnificent estate. Working at his trade was now, of course, out of the question. Farming, as everybody knows, is a gentlemanly occupation, skill in which comes by nature; and Citizen Delessert forthwith betook himself, with his son, to Les Près, in the full belief that he had stepped at once into the dignified and delightful position of the ousted aristocrat, to whom Les Près had once belonged, and whose haughty head he had seen fall into the basket. But envious clouds will darken the brightest sky, and the new proprietor found, on taking possession of his quiet, unencumbered domain, that property has its plagues as well as pleasures. True, there was the land; but not a plant, or a seed thereon or therein, nor an agricultural implement of any kind to work it with. The walls of the old rambling house were standing, and the roof, except in about a dozen places, kept out the rain with some success; but the nimble, unrespecting fingers of preceding patriots had carried off not only every vestige of furniture, usually so called, but coppers, cistern, pump, locks, hinges—nay, some of the very doors and window-frames! Delessert was profoundly discontented. He remarked to Le Bossu, now a sharp lad of some twelve years of age, that he was at last convinced of the entire truth of his cousin Boisdet's frequent observation—

that the Revolution, glorious as it might be, had been stained and dishonoured by many shameful excesses; an admission which the son, with keen remembrance of his compulsory flight from the window, savagely endorsed.

'Peste!' exclaimed the new proprietor, after a lengthened and painful examination of the dilapidations, and general nakedness of his estate—'this is embarrassing. Citizen Destouches was right. I must raise money upon the property, to replace what those brigands have carried off. I shall require three thousand francs at the very least.'

The calculation was dispiriting; and after a night's lodging on the bare floor, damply enveloped in a few old sacks, the financial horizon did not look one whit less gloomy in the eyes of Citizen Delessert. Destouches, he sadly reflected, was an iron-fisted notary-public, who lent money, at exorbitant interest, to distressed landowners, and was driving, people said, a thriving trade in that way just now. His pulse must, however, be felt, and money be obtained, however hard the terms. This was unmistakably evident; and with the conviction tugging at his heart, Citizen Delessert took his pensive way towards Strasbourg.

'You guess my errand, Citizen Destouches?' said Delessert, addressing a flinty-faced man of about his own age, in a small room of Numéro 9, Rue Béchard.

'Yes—money: how much?'

'Three thousand francs is my calculation.'

'Three thousand francs! You are not afraid of opening your mouth, I see. Three thousand francs!—humph! Security, ten acres of middling land, uncultivated, and a tumble-down house; title, *droit de guillotine*. It is a risk, but I think I may venture. Pierre Nadaud,' he continued, addressing a black-browed, sly, sinister-eyed clerk, 'draw a bond, secured upon Les Près, and the appurtenances, for three thousand francs, with interest at ten per cent.'——

'Morbleu! but that is famous interest!' interjected Delessert, though timidly.

'Payable quarterly, if demanded,' the notary continued, without heeding his client's observation; 'with power, of course, to the lender to sell, if necessary, to reimburse his capital, as well as all accruing *dommages-intérêts*!'

The borrower drew a long breath, but only muttered: 'Ah, well; no matter! We shall work hard, Antoine and I.'

The legal document was soon formally drawn: Citizen Delessert signed and sealed, and he had only now to pouch the cash, which the notary placed upon the table.

'Ah ça!' he cried, eyeing the roll of paper proffered to his acceptance with extreme disgust. 'It is not in those *chiffons* of assignats, is it, that I am to receive three thousand francs, at ten per cent.?'

'My friend,' rejoined the notary, in a tone of great severity, 'take care what you say. The offence of depreciating the credit or money of the Republic is a grave one.'

'Who should know that better than I?' promptly replied Delessert. 'The paper-money of our glorious Republic is of inestimable value; but the fact is, Citizen Destouches, I have a weakness, I confess it, for coined money—*argent métallique*. In case of fire, for instance, it'——

'It is very remarkable,' interrupted the notary with increasing sternness—'it is very remarkable, Pierre' (Pierre was an influential member of the Salut Public), 'that the instant a man becomes a landed proprietor, he betrays symptoms of *incivisme*: is discovered to be, in fact, an *aristocq* at heart.'

'I an *aristocq*!' exclaimed Delessert, turning very pale; 'you are jesting, surely. See, I take these admirable assignats—three thousand francs' worth at ten per cent.—with the greatest pleasure. Oh, never mind counting among friends.'

'Pardon!' replied Destouches, with rigid scrupulosity. 'It is necessary to be extremely cautious in matters of business. Deducting thirty francs for the bond, you will, I think, find your money correct; but count yourself.'

Delessert pretended to do so, but the rage in his heart so caused his eyes to dance and dazzle, and his hands to shake, that he could scarcely see the figures on the assignats, or separate one from the other. He bundled them up at last, crammed them into his pocket, and hurried off, with a sickly smile upon his face, and maledictions, which found fierce utterance as soon as he had reached a safe distance, trembling on his tongue.

'Scélérat! coquin!' he savagely muttered. 'Ten per cent. for this moonshine money! I only wish—— But never mind, what's sauce for the goose is sauce for the gander. I must try and buy in the same way that I have been so charmingly sold.'

Earnestly meditating this equitable process, Citizen Delessert sought his friend Jean Souday, who lived close by the Fossé des Tanneurs (Tanners' Ditch.) Jean had a somewhat ancient mare to dispose of, which our landed proprietor thought might answer his purpose. Cocotte was a slight waif, sheared off by the sharp axe of the Place de la Révolution, and Souday could therefore afford to sell her cheap. Fifty francs *argent métallique* would, Delessert knew, purchase her; but with assignats, it was quite another affair. But, courage! He might surely play the notary's game with his friend Souday: that could not be so difficult.

'You have no use for Cocotte,' suggested Delessert modestly, after exchanging fraternal salutations with his friend.

'Such an animal is always useful,' promptly answered Madame Souday, a sharp, notable little woman, with a vinegar aspect.

'To be sure—to be sure! And what price do you put upon this useful animal?'

'Cela dépend'—— replied Jean, with an interrogative glance at his helpmate.

'Yes, as Jean says, that depends——entirely depends'—— responded the wife.

'Upon what, citoyenne?'

'Upon what is offered, parbleu! We are in no hurry to part with Cocotte; but money is tempting.'

'Well, then, suppose we say, between friends, fifty francs?'

'Fifty francs! That is very little; besides, I do not know that I shall part with Cocotte at all.'

'Come, come; be reasonable. Sixty francs! Is it a bargain?'

Jean still shook his head. 'Tempt him with the actual sight of the money,' confidentially suggested Madame Souday; 'that is the only way to strike a bargain with my husband.'

Delessert preferred increasing his offer to this advice, and gradually advanced to 100 francs, without in the least softening Jean Souday's obduracy. The possessor of the assignats was fain, at last, to adopt Madame Souday's iterated counsel, and placed 120 paper francs before the owner of Cocotte. The husband and wife instantly, as silently, exchanged with each other, by the only electric telegraph then in use, the words: 'I thought so.'

'This is charming money, friend Delessert,' said Jean Souday; 'far more precious to an enlightened mind than the barbarous coin stamped with effigies of kings and queens of the *ancien régime*. It is very tempting; still, I do not think I can part with Cocotte at any price.'

Poor Delessert ground his teeth with rage, but the expression of his anger would avail nothing; and, yielding to hard necessity, he at length, after much wrangling, became the purchaser of the old mare for 250 francs—in assignats. We give this as a specimen of the bargains effected by the owner of Les Près with his borrowed capital, and as affording a key to the bitter hatred he from that day cherished towards the notary, by whom he had, as he conceived, been so egregiously duped. Towards evening, he entered a wine-shop in the suburb of Robertsau, drank freely, and talked still more so, fatigue and vexation having rendered him both thirsty and bold. Destouches, he assured everybody that would listen to him, was a robber—a villain—a vampire blood-sucker, and he, Delessert, would be amply revenged on him some fine day. Had the loquacious orator been eulogising

some one's extraordinary virtues, it is very probable that all he said would have been forgotten by the morrow, but the memories of men are more tenacious of slander and evil-speaking; and thus it happened that Delessert's vituperative and menacing eloquence on this occasion was thereafter reproduced against him with fatal power.

Albeit, the now nominal proprietor of Les Près, assisted by his son and Cocotte, set to work manfully at his new vocation; and by dint of working twice as hard, and faring much worse than he did as a journeyman *ferblantier*, contrived to keep the wolf, if not far from the door, at least from entering in. His son, Le Bossu, was a cheerful, willing lad, with large, dark, inquisitive eyes, lit up with much clearer intelligence than frequently falls to the share of persons of his age and opportunities. The father and son were greatly attached to each other; and it was chiefly the hope of bequeathing Les Près, free from the usurious gripe of Destouches, to his boy, that encouraged the elder Delessert to persevere in his well-nigh hopeless husbandry. Two years thus passed, and matters were beginning to assume a less dreary aspect, thanks chiefly to the notary's not having made any demand in the interim for the interest of his mortgage.

'I have often wondered,' said Le Bossu one day, as he and his father were eating their dinner of *soupe aux choux* and black bread, 'that Destouches has not called before. He may now as soon as he pleases, thanks to our having sold that lot of damaged wheat at such a capital price: corn must be getting up tremendously in the market. However, you are ready for Destouches' demand of six hundred francs, which it is now.'

'Parbleu! quite ready; all ready counted in those charming assignats; and that is the joke of it. I wish the old villain may call or send soon'——

A gentle tap at the door interrupted the speaker. The son opened it, and the notary, accompanied by his familiar, Pierre Nadaud, quietly glided in.

'Talk of the devil,' growled Delessert audibly, 'and you are sure to get a whisk of his tail. Well, messieurs,' he added more loudly, 'your business?'

'Money——interest now due on the mortgage for three thousand francs,' replied M. Destouches with much suavity.

'Interest for two years,' continued the sourly-sardonic accents of Pierre Nadaud; 'six hundred francs precisely.'

'Very good, you shall have the money directly.' Delessert left the room; the notary took out and unclasped a note-book; and Pierre Nadaud placed a slip of *papier timbré* on the dinner-table, preparatory to writing a receipt.

'Here,' said Delessert, re-entering with a roll of soiled paper in his hand, 'here are your six hundred francs, well counted.'

The notary reclasped his note-book, and returned it to his pocket; Pierre Nadaud resumed possession of the receipt paper.

'You are not aware, then, friend Delessert,' said the notary, 'that creditors are no longer compelled to receive assignats in payment?'

'How? What do you say?'

'Pierre,' continued M. Destouches, 'read the extract from *Le bulletin des Lois*, published last week.' Pierre did so with a ringing emphasis, which would have rendered it intelligible to a child; and the unhappy debtor fully comprehended that his paper-money was comparatively worthless! It is needless to dwell upon the fury manifested by Delessert, the cool obduracy of the notary, or the cynical comments of the clerk. Enough to say, that M. Destouches departed without his money, after civilly intimating that legal proceedings would be taken forthwith. The son strove to soothe his father's passionate despair, but his words fell upon unheeding ears; and after several hours passed in alternate paroxysms of stormy rage and gloomy reverie, the elder Delessert hastily left the house, taking the direction of Strasbourg. Le Bossu watched his father's retreating figure from the door until it was lost in the clouds of blinding snow that was rapidly falling, and then sadly resumed some indoor employment. It was late when he retired to bed, and his father had not then returned. He would probably remain, the son thought, at Strasbourg for the night.

The chill, lead-coloured dawn was faintly struggling on the horizon with the black, gloomy night, when Le Bossu rose. Ten minutes afterwards, his father strode hastily into the house, and threw himself, without a word,

upon a seat. His eyes, the son observed, were blood-shot, either with rage or drink—perhaps both; and his entire aspect wild, haggard, and fierce. Le Bossu silently presented him with a measure of *vin ordinaire*. It was eagerly swallowed, though Delessert's hand shook so that he could scarcely hold the pewter flagon to his lips.

'Something has happened,' said Le Bossu presently.

'Morbleu!—yes. That is,' added the father, checking himself, 'something *might* have happened, if—— Who's there?'

'Only the wind shaking the door. What *might* have happened?' persisted the son.

'I will tell you, Antoine. I set off for Strasbourg yesterday, to see Destouches once again, and entreat him to accept the assignats in part-payment at least. He was not at home. Marguérite, the old servant, said he was gone to the cathedral, not long since reopened. Well, I found the usurer just coming out of the great western entrance, heathen as he is, looking as pious as a pilgrim. I accosted him, told my errand, begged, prayed, stormed! It was all to no purpose, except to attract the notice and comments of the passers-by. Destouches went his way, and I, with fury in my heart, betook myself to a wine-shop—Le Brun's. He would not even change an assignat to take for what I drank, which was not a little; and I therefore owe him for it. When the gendarmes cleared the house at last, I was nearly crazed with rage and drink. I must have been so, or I should never have gone to the Rue Béchard, forced myself once more into the notary's presence, and—and'——

'And what?' quivered the young man, as his father abruptly stopped, startled as before into silence by a sudden rattling of the crazy door. 'And what?'

'And abused him for a flinty-hearted scoundrel, as he is. He ordered me away, and threatened to call the guard. I was flinging out of the house, when Marguérite twitched me by the sleeve, and I stepped aside into the kitchen. "You must not think," she said, "of going home on such a night as this." It was snowing furiously, and blowing a hurricane at the time. "There is a straw pallet," Marguérite added, "where you can sleep, and nobody the wiser." I yielded. The good woman warmed some soup, and the storm not

abating, I lay down to rest—to rest, do I say?' shouted Delessert, jumping madly to his feet, and pacing furiously to and fro—'the rest of devils! My blood was in a flame; and rage, hate, despair, blew the consuming fire by turns. I thought how I had been plundered by the mercenary ruffian sleeping securely, as he thought, within a dozen yards of the man he had ruined—sleeping securely just beyond the room containing the *secrétaire* in which the mortgage-deed of which I had been swindled was deposited'——

'Oh, father!' gasped the son.

'Be silent, boy, and you shall know all! It may be that I dreamed all this, for I think the creaking of a door, and a stealthy step on the stair, awoke me; but perhaps that, too, was part of the dream. However, I was at last wide awake, and I got up and looked out on the cold night. The storm had passed, and the moon had temporarily broken through the heavy clouds by which she was encompassed. Marguérite had said I might let myself out, and I resolved to depart at once. I was doing so, when, looking round, I perceived that the notary's office-door was ajar. Instantly a demon whispered, that although the law was restored, it was still blind and deaf as ever—could not see or hear in that dark silence—and that I might easily baffle the cheating usurer after all. Swiftly and softly, I darted towards the half-opened door—entered. The notary's *secrétaire*, Antoine, was wide open! I hunted with shaking hands for the deed, but could not find it. There was money in the drawers, and I—I think I should have taken some—did perhaps, I hardly know how—when I heard, or thought I did, a rustling sound not far off. I gazed wildly round, and plainly saw in the notary's bedroom—the door of which, I had not before observed, was partly open—the shadow of a man's figure clearly traced by the faint moonlight on the floor. I ran out of the room, and out of the house, with the speed of a madman, and here—here I am!' This said, he threw himself into a seat, and covered his face with his hands.

'That is a chink of money,' said Le Bossu, who had listened in dumb dismay to his father's concluding narrative. 'You had none, you said, when at the wine-shop.'

'Money! Ah, it may be as I said—— Thunder of heaven!' cried the wretched man, again fiercely springing to his feet, 'I am lost!'

'I fear so,' replied a commissaire de police, who had suddenly entered, accompanied by several gendarmes—'if it be true, as we suspect, that you are the assassin of the notary Destouches.'

The assassin of the notary Destouches! Le Bossu heard but these words, and when he recovered consciousness, he found himself alone, save for the presence of a neighbour, who had been summoned to his assistance.

The *procès verbal* stated, in addition to much of what has been already related, that the notary had been found dead in his bed, at a very early hour of the morning, by his clerk Pierre Nadaud, who slept in the house. The unfortunate man had been stifled, by a pillow it was thought. His *secrétaire* had been plundered of a very large sum, amongst which were Dutch gold ducats—purchased by Destouches only the day before—of the value of more than 6000 francs. Delessert's mortgage-deed had also disappeared, although other papers of a similar character had been left. Six crowns had been found on Delessert's person, one of which was clipped in a peculiar manner, and was sworn to by an *épiciier* as that offered him by the notary the day previous to the murder, and refused by him. No other portion of the stolen property could be found, although the police exerted themselves to the utmost for that purpose.

There was, however, quite sufficient evidence to convict Delessert of the crime, notwithstanding his persistent asseverations of innocence. His known hatred of Destouches, the threats he had uttered concerning him, his conduct in front of the cathedral, Marguérite's evidence, and the finding the crown in his pocket, left no doubt of his guilt, and he was condemned to suffer death by the guillotine. He appealed of course, but that, everybody felt, could only prolong his life for a short time, not save it.

There was one person, the convict's son, who did not for a moment believe that his father was the assassin of Destouches. He was satisfied in his own mind, that the real criminal was he whose step Delessert had dreamed he heard upon the stair, who had opened the office-door, and whose shadow fell across the bedroom floor; and his eager, unresting thoughts were bent upon bringing this conviction home to others. After awhile, light, though as yet dim and uncertain, broke in upon his filial task.

About ten days after the conviction of Delessert, Pierre Nadaud called upon M. Huguet, the procureur-général of Strasbourg. He had a serious complaint to make of Delessert, *fils*. The young man, chiefly, he supposed, because he had given evidence against his father, appeared to be nourishing a monomaniacal hatred against him, Pierre Nadaud. 'Wherever I go,' said the irritated complainant, 'at whatever hour, early in the morning and late at night, he dogs my steps. I can in no manner escape him, and I verily believe those fierce, malevolent eyes of his are never closed. I really fear he is meditating some violent act. He should, I respectfully submit, be restrained—placed in a *maison de santé*, for his intellects are certainly unsettled; or otherwise prevented from accomplishing the mischief I am sure he contemplates.'

M. Huguet listened attentively to this statement, reflected for a few moments, said inquiry should be made in the matter, and civilly dismissed the complainant.

In the evening of the same day, Le Bossu was brought before M. Huguet. He replied to that gentleman's questioning by the avowal, that he believed Nadaud had murdered M. Destouches. 'I believe also,' added the young man, 'that I have at last hit upon a clue that will lead to his conviction.'

'Indeed! Perhaps you will impart it to me?'

'Willingly. The property in gold and precious gems carried off has not yet been traced. I have discovered its hiding-place.'

'Say you so? That is extremely fortunate.'

'You know, sir, that beyond the Rue des Vignes there are three houses standing alone, which were gutted by fire some time since, and are now only temporarily boarded up. That street is entirely out of Nadaud's way, and yet he passes and repasses there five or six times a day. When he did not know that I was watching him, he used to gaze curiously at those houses, as if to notice if they were being disturbed for any purpose. Lately, if he suspects I am at hand, he keeps his face determinedly away from them, but still seems to have an unconquerable hankering after the spot. This very morning, there was a cry raised close to the ruins, that a child had been run

over by a cart. Nadaud was passing: he knew I was close by, and violently checking himself, as I could see, kept his eyes fixedly *averted* from the place, which I have no longer any doubt contains the stolen treasure.'

'You are a shrewd lad,' said M. Huguet, after a thoughtful pause. 'An examination shall at all events take place at nightfall. You, in the meantime, remain here under surveillance.'

Between eleven and twelve o'clock, Le Bossu was again brought into M. Huguet's presence. The commissary who arrested his father was also there. 'You have made a surprising guess, if it *be* a guess,' said the procureur. 'The missing property has been found under a hearth-stone of the centre house.' Le Bossu raised his hands, and uttered a cry of delight. 'One moment,' continued M. Huguet. 'How do we know this is not a trick concocted by you and your father to mislead justice?'

'I have thought of that,' replied Le Bossu calmly. 'Let it be given out that I am under restraint, in compliance with Nadaud's request; then have some scaffolding placed to-morrow against the houses, as if preparatory to their being pulled down, and you will see the result, if a quiet watch is kept during the night.' The procureur and commissary exchanged glances, and Le Bossu was removed from the room.

It was verging upon three o'clock in the morning, when the watchers heard some one very quietly remove a portion of the back-boarding of the centre house. Presently, a closely-muffled figure, with a dark-lantern and a bag in his hand, crept through the opening, and made direct for the hearth-stone; lifted it, turned on his light slowly, gathered up the treasure, crammed it into his bag, and murmured with an exulting chuckle as he reclosed the lantern and stood upright: 'Safe—safe, at last!' At the instant, the light of half a dozen lanterns flashed upon the miserable wretch, revealing the stern faces of as many gendarmes. 'Quite safe, M. Pierre Nadaud!' echoed their leader. 'Of that you may be assured.' He was unheard: the detected culprit had fainted.

There is little to add. Nadaud perished by the guillotine, and Delessert was, after a time, liberated. Whether or not he thought his ill-gotten property had brought a curse with it, I cannot say; but, at all events, he abandoned it to

the notary's heirs, and set off with Le Bossu for Paris, where, I believe, the sign of 'Delessert et Fils, Ferblantiers,' still flourishes over the front of a respectably furnished shop.

PHILOSOPHY OF THE SHEARS.

[Return to Table of Contents](#)

THE vestiarian profession has always been ill-treated by the world. Men have owed much, and in more senses than one, to their tailors, and have been accustomed to pay their debt in sneers and railleries—often in nothing else. The stage character of the tailor is stereotyped from generation to generation; his goose is a perennial pun; and his habitual melancholy is derived to this day from the flatulent diet on which he *will* persist in living—cabbage. He is effeminate, cowardly, dishonest—a mere fraction of a man both in soul and body. He is represented by the thinnest fellow in the company; his starved person and frightened look are the unfailing signals for a laugh; and he is never spoken to but in a gibe at his trade:

'Thou liest, thou thread,
Thou thimble,
Thou yard, three-quarters, half-yard, quarter, nail;
Away thou rag, thou quantity, thou remnant;
Or I shall so bemete thee with thy yard,
As thou shalt think on prating while thou liv'st!'

All this is not a very favourable specimen of the way in which the stage holds the mirror up to nature. We may suppose that a certain character of effeminacy attached to a tailor in that olden time when he was the fashioner for women as well as men; but now that he has no professional dealings with the fair sex but when they assume masculine 'habits,' it is unreasonable to continue the stigma. In like manner, when the cloth belonged to the customer, it was allowable enough to suspect him of a little amiable weakness for cabbage; but now that he is himself the clothier, the joke is pointless and absurd. Tailors, however, can afford to laugh, as well as other people, at their conventional double—or rather *ninth*, for at least in our own day they have wrought very hard to elevate their calling into a science. The period of lace and frippery of all kinds has passed away, and this is the era of simple form, in which sartorial genius has only cloth to work upon as

severely plain as the statuary's marble. It is true, we ourselves do not understand the 'anatomical principles' on which the more philosophical of the craft proceed, nor does our scholarship carry us quite the length of their Greek (?) terminology; but we acknowledge the result in their workmanship, although we cannot trace the steps by which it is brought about.

Very different is the plan now from what it was in the days of Shemus nan Snachad, James of the Needle, hereditary tailor to Vich Ian Vohr, when men were measured as classes rather than as individuals, and when a cutter had only to glance at the customer to ascertain to which category he belonged.

'You know the measure of a well-made man? Two double nails to the small of the leg'——

'Eleven from haunch to heel, seven round the waist. I give your honour leave to hang Shemus, if there's a pair of shears in the Highlands that has a boulder sneck than her ain at the *camadh an truais* (shape of the trews).' And so the thing was done, without tape or figures, without a word of Greek or anatomy! However, the anatomical tailors we shall not meddle with for the present, because we do not understand their science; nor with the Greek tailors, because we fear to take the liberty; nor with the Hebrew tailors, because we are only a Gentile ourselves. Our object is to draw attention to the doings of an individual who interferes with no science but his own, and who patronises exclusively his mother-tongue, which is not Hebrew, but broad Scotch.

This individual is Mr Macdonald, a near neighbour of ours, who, about eighteen years ago, listened with curiosity, but not with dread, to the clamorous pretensions of the craft to which he belonged. At that time, every man had a 'new principle' of his own for the sneck of the shears, some theoretical mode of cutting, which was to make the coat fit like the skin. Our neighbour, who had a practical and mechanical, rather than a speculative head, resolved not to be behind in the race of competition, but to proceed in a different way. 'It is all very well,' thought he, 'to talk of principles and theories; but with the requisite apparatus, the human figure may be measured as accurately as a block of stone;' and accordingly he set to work, not to invent a theory, but to construct a machine. This machine,

though exhibited some time ago in the School of Arts, and received with great favour, we happened not to hear of till a few days ago; but a visit to our neighbour puts it now in our power to report that his apparatus does much more, as we shall presently explain, than measure a customer.

The machine consists of three perpendicular pieces of wood, the centre one between six and seven feet high, with a plinth for the measuree to stand upon. The wood is marked from top to bottom with inches and parts of an inch, and is furnished with slides, fitting closely, but movable at the pleasure of the operator. When the customer places himself upon this machine, standing at his full height, he has much the appearance of a man suffering the punishment of crucifixion, only his arms, instead of being extended, hang motionless by his sides, with the fingers pointed. A slide is now run up between the victim's legs, to give the measurement of what is technically called the fork; while others mark in like manner upon the inch scale, the position of the knees, hips, tips of the fingers, shoulder, neck, head, &c. When the operator is satisfied that he has thus obtained the accurate admeasurement of the figure, in its natural position when standing erect, the gentleman steps from the machine, and turning round, sees an exact diagram, in wood, of his own proportions.

This instrument, it will be seen, is very well adapted for the object for which it was intended; but it would, nevertheless, have escaped our inspection but for the other purposes of observation to which it has been applied by the ingenious inventor. He has measured in all about 5000 adults, registering in a book the measurement of each, with the names written by themselves. Among the autographs, we find that of Sir David Wilkie in the neighbourhood of the names of half a dozen American Indians. Here would be a new branch of inquiry for those who are addicted to the study of character through the handwriting. With such abundant materials before them, they would doubtless be able to determine the height and general proportions of their unseen correspondents. In the article of height, many men correspond to the minutest portion of an inch; but in the other proportions of the figure, it would seem that no two human beings are alike. So great is the disparity in persons of the same height, that the trunk of an individual of five feet and a half, is occasionally found to be as long as that of a man of six feet. In fact, Mr Macdonald, in an early period of his

measurements, was so confounded by the difference in the proportions, that he at once came to the conclusion, that our population is made up of mixed tribes of mankind.

In the midst of all this diversity, the question was, What were the proper proportions? or, in other words, What proportions constituted a handsome figure? and here our vestiarian philosopher was for a long time at a loss. At length, however, he took 300 measurements, without selection, including the length of the trunk, of the head and neck, and of the fork, and adding them all together, struck the average: from which it resulted, that the average head and neck gives $10\frac{1}{2}$ inches; trunk, 25 inches; and fork, 32 inches; making the whole figure, from the crown of the head to the sole of the *shoe*, 5 feet $7\frac{1}{2}$ inches. The word we have italicised is the drawback: a tailor measures with the shoes on; and Mr Macdonald can only approximate to the truth when he deducts half an inch for the sole, and declares the average height of our population to be five feet seven inches. On this basis, however, he constructed a scale of beauty applying to all heights: If a man of 5 feet 7 inches give $10\frac{1}{2}$ inches for head and neck, 25 for trunk, and $31\frac{1}{2}$ for fork, what should another give, of 6 feet, or any other height? The approximation of a man's actual measurement to this rule of three determines his pretensions in the way of symmetry; and the inventor of the *shibboleth* has found it so far to answer, that a figure coming near the rule invariably pleases the eye, and gives the assurance of a handsome man. Independently of this advantage, a man of such proportions has great strength, and is able to withstand the fatigue of violent exercise for a longer period than one less symmetrically formed.

The term 'adult,' however, used by Mr Macdonald to designate those he measured, is not satisfactory—it does not inform us that the persons measured had reached their full development; for men continue to grow, as has been shewn by M. Quetelet, even after twenty-five. The height given, notwithstanding—five feet seven inches—in all probability approximates pretty closely to the true average; and the very different result shewn in Professor Forbes's measurements in the University must be set pretty nearly out of the question. The number of Scotsmen measured by the professor was 523 in all; but these were of eleven different ages, from fifteen to twenty-five, all averaged separately; and supposing the number of each age

to have been alike, this would give less than fifty of the age of twenty-five—the average height of whom was 69.3 inches. But independently of the smallness of the number, the professor's customers were volunteers, and it is not to be supposed that under-sized persons would put themselves forward on such an occasion. It may be added, that even the height of the boot-heels of young collegians of twenty-five would tend to falsify the average.

Men do not only differ in their proportions from other men, but from themselves. The arms and legs may be paired, but they are not matched, and in every respect one side of the body is different from the other: the eyes are not set straight across the face, neither is the mouth; the nose is inclined to one side; the ears are of different sizes, and one is nearer the crown of the head than the other; there are not two fingers, nor two nails on the fingers, alike, and the same disagreement runs through the whole figure. This, however, is so common an observation, that we should not have thought it necessary to mention it, but for the bearing the facts given by our statist have upon the common theory by which the irregularity is sought to be accounted for. This declares, that use is the cause of the greater growth of one limb, &c.: that the right hand, for instance, is larger than the left, because it is in more active service. It appears, however, that although the left limbs are in general smaller, this is not, as it is usually supposed, invariably the case; while the ears and eyes, that are used indiscriminately, present the same relative difference of size. We do not, therefore, make our own proportions in this respect: we come into the world with them, and our occupations merely exaggerate a natural defect. An idle man will have one arm half an inch longer than the other; while a woman, who has been accustomed in early years to carry a child, exhibits a difference amounting sometimes to an inch and a half.

When these facts were first mentioned to us, we looked with some curiosity at the machine from which we had just stepped out; and there we found an illustration of them not highly flattering to our self-esteem. Knees, hips, shoulders, ears, all were so ill-assorted, that it seemed as if Nature had been actually trying her 'prentice hand upon our peculiar self. It was in vain to bethink ourselves of the physical eccentricities of the distinguished men of other times:

'Ammon's great son one shoulder had too high;
Such Ovid's nose, and, sir, you have an eye!'—

we might have gone through the whole inventory of the figure, and concluded the quotation:

'Go on, obliging creatures, make me see
All that disgraced my betters met in me.
Say, for my comfort, languishing in bed,
Just so immortal Maro held his head;
And when I die, be sure you let me know—
Great Homer died three thousand years ago!'

What we had seen, however, was only the length of the figure; but we were informed by our philosophic tailor, that the limbs, &c., are likewise irregularly placed as regards breadth. The trunk of the body is of various shapes, which he distinguishes as the oval, the circular, and the flat. The first has the arms placed in the middle; in the second, they are more towards the back, and relatively long; and in the third, more towards the front, and relatively short. The length of the forearm should be the length of the lower part of the leg, and if either longer or shorter, the difference appears in the walk. If shorter, the walk is a kind of waddle, the elbows inclining outwards; if longer, it is distinguished by a swinging motion, as if the person carried weights in his hands. If the circumference of the body, measured with an inch-tape just below the shoulders, be smaller than the circumference of the hips, the person will rock in walking, and plant his feet heavily upon the ground. If greater, so that the chief weight is above the limbs, the step will be light, as is familiarly seen in corpulent men, whose delicate mode of walking we witness with ever-recurring surprise. If the shoulders slope downwards, with the spine bending inwards, the individual 'cannot throw a stone, or handle firearms with dexterity.' When inclined forwards, and well relieved from the body, he may be a proficient in these exercises. A peculiarity in walking is given by the size of the head and neck being out of proportion; and an instance is mentioned of a man being discharged from the army, on account of his conformation rendering it impossible for him to keep his head steady.

All these are curious and suggestive particulars. It is customary to refer awkwardness of manner to bad habit, and such diseases as consumption either to imprudence or hereditary taint; but it may be doubted whether taints are not mainly the result of original conformation. Habit and imprudence may doubtless aggravate the evil, just as exercise may enlarge a member of the body; but it is nature which sows the seeds of decay in her own productions. Physically, the child is a copy of the parents, even to their peculiarities of gait; and these peculiarities would seem to depend on the correct or incorrect balance of the members of the body. When the conformation is of a kind which interferes with the play of the lungs, the same transmission of course takes place, and consumption may be the fatal inheritance. If the arrangement of the parts were perfect, it may be doubted—for symmetry is the basis of health as well as beauty—whether we should ever hear of such a thing as 'taint in the blood.' If this theory were to gain ground, it would simplify much the practice of medicine; for the disease would stand in visible and tangible presence before the eyes, and the employment of inventions, to counteract and finally conquer the eccentricities of nature, would be governed by science, and thus relieved from the suspicion of quackery, which at present more or less attaches to it. To pursue these speculations, however, would lead us too far; and before concluding, we must find room for a few more of our practical philosopher's observations.

All good mechanics, it seems, have large hands and thick and short fingers; which is pretty nearly the conclusion arrived at by D'Arpentigny in *La Chirognomonie*, although the captain adds, that the hands must be *en spatule*—that is to say, with the end of the fingers enlarged in the form of a spatula. The hand is generally the same breadth as the foot: a fact recognised by the country people, who, when buying their shoes at fairs—which were the usual mart—might have been seen thrusting in their hand to try the breadth, when they had ascertained that the length was suitable. A short foot gives a mincing walk, while a long one requires the person to bring his body aplomb with the foot before taking the step, which thus resembles a stride. Good dancers have the limbs short as compared with the body, which has thus the necessary power over them; but if too short, there is a deficiency of dexterity in the management of the feet.

In conclusion, it will be seen, we think, that there is much to be learned even in the business of the shears. There is no trade whatever which will not afford materials for thought to an intelligent man, and thus enlarge the mind and elevate the character.

THE NIGHTINGALE:

[Return to Table of Contents](#)

A MUSICAL QUESTION.

Is the song of the nightingale mirthful or melancholy? is a question that has been discussed so often, that anything new on the subject might be considered superfluous, were it not that the very fact of the discussion is in itself a curiosity worthy of attention. The note in dispute was heard with equal distinctness by Homer and Wordsworth; and indeed there are few poets of any age or country who have not, at one time or other in their lives, had the testimony of their own ears as to its character. Whence, then, this difference of opinion? Listen to Thomson's unqualified assertion, given with the seriousness of an affidavit:

——'all abandoned to despair, she sings
Her sorrows through the night, and on the bough
Sole sitting still at every dying fall
Takes up again her lamentable strain
Of winding wo; till wide around the woods
Sigh to her song and with her wail resound.'

Then Homer in the *Odyssey*, through Pope's paraphrase:

'Sad Philomel, in bowery shades unseen,
To vernal airs attunes her varied strains.'

Virgil, as rendered by Dryden:

——'she supplies the night with mournful strains
And melancholy music fills the plains.'

Milton, too:

——'Philomel will deign a song
In her sweetest, saddest plight,
Smoothing the rugged brow of night,
While Cynthia checks her dragon yoke
Gently o'er the accustom'd oak:
Sweet bird, that shun'st the noise of folly—
Most musical, most melancholy.'

And again in *Comus*:

——'the love-lorn nightingale
Nightly to thee her sad song mourneth well.'

And Shakspeare makes his poor banished Valentine congratulate himself,
that in the forest he can

——'to the nightingale's complaining note
Tune his distresses and record his wo.

We might go on much longer in this strain. We might give, likewise, the
mythological cause assigned for the imputed melancholy, and add that
some, not content with this, represent the bird as leaning its breast against a
thorn—

'To aggravate the inward grief,
Which makes its music so forlorn.'

But we would rather pause to admit candidly, that two of the above
witnesses might be challenged—Virgil and Thomson; who indeed should be
counted but as one, for the author of the *Seasons*, in the lines quoted, has
translated, though not so closely as Dryden, from the *Georgics* of the Latin
poet. If you will read the passage—it matters not whether in Virgil, Dryden,
or Thomson—you will perceive that it is a special occurrence that is spoken
of: no statement whatever is made as to the character of the nightingale's
ordinary song. Thomson, in the course of his humane and touching protest
against the barbarous art: 'through which birds are

—— by tyrant man

Inhuman caught, and in the narrow cage
From liberty confined, and boundless air,'

represents the nightingale's misery when thus bereaved. This portion of the lines shall stand entire; none, we are sure, would wish us further to mangle the passage:

'But chief, let not the nightingale lament
Her ruined care, too delicately framed
To brook the harsh confinement of the cage.
Oft, when returning with her loaded bill,
The astonished mother finds a vacant nest,
By the rude hands of unrelenting clowns
Robbed: to the ground the vain provision falls.
Her pinions ruffle, and low drooping, scarce
Can bear the mourner to the poplar shade;
Where all abandoned to despair, she sings
Her sorrows through the night.'

It will at once be seen that this description relates to an exceptional condition, and we have yet to seek what character Virgil and Thomson would give to the ordinary song of this paradoxical musician. For the Roman, we do not know that any passage exists in his works which can help us to a conclusion; but Thomson's testimony must undoubtedly be ranged on the contra side, as appears from the following lines in his *Agamemnon*:

'Ah, far unlike the nightingale! she sings
Unceasing through the balmy nights of May—
She sings from love and joy.'

In the passage from his *Spring*, which we have given, we cannot but fancy that the poet endeavoured—if we may so say—to effect a compromise between the opinion which, through the influence of classical poetry, generally prevailed as to the character of the bird's music, and the opposing convictions which his own senses had forced upon him. It was desirable to describe its strains according to the popular fancy, and therefore he

borrowed from Virgil such a description of the bird's sorrow as under the assumed circumstances did no violence to his own judgment.

Thomson is not the only poet in whom we fancy we detect some such attempt at compromise. It appears to us that Villega, the Anacreon of Spain, in the following little poem, which we give in Mr Wiffen's translation, adopted, with a similar object, this idea of the nightingale robbed of her young. The truthful and somewhat minute description in the song, however, represents the bird's ordinary performance, and but ill suits the circumstances under which it is supposed to be uttered. The failure on the part of the poet may be ascribed to his secret conviction, that the nightingale's was a cheerful melody; and his labouring against that conviction to the necessity he felt himself under of following his classical masters.

I have seen a nightingale
On a sprig of thyme bewail,
Seeing the dear nest that was
Hers alone, borne off, alas!
By a labourer: I heard,
For this outrage, the poor bird
Say a thousand mournful things
To the wind, which on its wings
From her to the guardian sky
Bore her melancholy cry—
Bore her tender tears. She spake
As if her fond heart would break.
One while in a sad, sweet note,
Gurgled from her straining throat,
She enforced her piteous tale,
Mournful prayer and plaintive wail;
One while with the shrill dispute,
Quite o'er-wearied, she was mute;
Then afresh, for her dear brood,
Her harmonious shrieks renewed;
Now she winged it round and round,
Now she skimmed along the ground;

Now from bough to bough in haste
The delighted robber chased;
And alighting in his path,
Seemed to say, 'twixt grief and wrath:
"Give me back, fierce rustic rude!
Give me back my pretty brood!"
And I saw the rustic still
Answer: "That I never will!"

Independently of the untruthfulness of which a naturalist would complain in this description—for no birds under such circumstances of distress sing, but merely repeat each its own peculiar piercing cry, never at any other time heard, and which cannot be mistaken—there is a palpable effort of ingenuity discoverable in the representation, which seems to tell us that the writer was making up a story, rather than uttering his own belief. It may even be doubted whether Virgil himself, who seems first to have invented this fancy, and behind whose broad mantle later poets have sheltered themselves, may not have felt an inclination to depart from the Greek opinion of Philomel's ditty. Why otherwise did he not simply and at once—as his masters Homer and Theocritus had done before him—describe her notes as mournful, instead of casting about for some cause that might excuse him for giving them that character? But however this may be, we cannot conceal from ourselves, that some stubborn passages still remain in the poets, proclaiming that there are men, and those among the greatest and most tasteful, to whose fancy the voice of the nightingale has sounded full of wo.

Homer must be counted of this number—unless we think with Fox, in the preface to his *History of Lord Holland*, that it is only as to her wakefulness Penelope is compared to the night singing-bird; and so must Milton (for although Coleridge has satisfactorily dealt with the passage in *Il Penseroso*, the line of the Lady's song in *Comus* remains still); and Shakspeare himself, who could scarcely be influenced, as Milton might very possibly be, by the opinions of the Grecian poets.

It is a strange contest we are here considering. Which of us would for a moment doubt our ability to decide in a dispute as to the liveliness or

sadness of any given melody?—yet here we see the greatest poets, the favoured children of nature, utterly at variance on a point concerning which we should have expected to find even the most ordinary minds able to decide.

The question becomes more involved from the fact, that some writers take *both* sides; for instance, Chiobrera in *Aleippo*: the nightingale

'Unwearied still reiterates her lays,
Jocund *or* sad, delightful to the ear;'

and Hartley Coleridge, in the following beautiful song, which we transcribe the more readily because it has not long been published, and may be new to many of our readers:

"Tis sweet to hear the merry lark,
That bids a blithe good-morrow;
But sweeter to hark in the twinkling dark
To the soothing song of sorrow.
Oh, nightingale! what doth she ail?
And is she *sad* or *jolly*?
For ne'er on earth was sound of mirth
So like to melancholy.

The merry lark he soars on high,
No worldly thought o'ertakes him;
He sings aloud to the clear blue sky,
And the daylight that awakes him.
As sweet a lay, as loud, as gay,
The nightingale is trilling;
With feeling bliss, no less than his
Her little heart is thrilling.

Yet ever and anon a sigh
Peers through her lavish mirth;
For the lark's bold song is of the sky,
And hers is of the earth.
By night and day she tunes her lay,

To drive away all sorrow;
For bliss, alas! to-night may pass,
And wo may come to-morrow.'

We must now cite one or two of the many passages which represent the nightingale's as an *absolutely* cheerful song. We fear we cannot insist so much as Fox is disposed to do, on the evidence of Chaucer, who continually styles the nightingale's a merry note, because it is evident that in *his* day the word had a somewhat different meaning from that which it at present conveys. For example, the poet calls the organ 'merry.' Nor dare we lay stress upon the instance which Cary cites—in a note to his *Purgatory*—of a 'neglected poet,' Vallans, who in his *Tale of Two Swannes* ranks the 'merrie nightingale among the cheerful birds,' because we do not know whether, even at the time when Vallans wrote—the book was published, it seems, in 1590—'merrie' had come to bear its present signification.

We shall, however, find a witness among the writers of his period in Gawain Douglas, who died Bishop of Dunkeld in 1522. He, in a prologue to one of his *Æneids*, applies not only the word 'merry' to our bird, but one of less questionable signification—'mirthful.' If we come down to more modern times, we shall find Wordsworth, who seems above all others, except Burns, to have had a catholic ear for the whole multitude of natural sounds, not only refusing the character of melancholy to the nightingale's song, but placing it below the stock-dove's, because it is deficient in the pensiveness and seriousness which mark the note of the latter.

However, of all testimonies which can be brought on this side of the question, the strongest is that of Coleridge. No other has so accurately described the song itself; moreover, he alone has entered the lists avowedly as an antagonist, and confessing in so many words to the existence of an opinion opposite to his own.

'And hark! the nightingale begins its song,
"Most musical, most melancholy" bird.
A melancholy bird? oh, idle thought![\[2\]](#)
In nature there is nothing melancholy.
But some night-wandering man, whose heart was
pierced

With the resemblance of a grievous wrong,
Or slow distemper, or neglected love,
First named these notes a melancholy strain:
And youths and maidens most poetical,
Who lose the deepening twilight of the spring
In ball-rooms and hot theatres, they still,
Full of meek sympathy, must heave their sighs
O'er Philomela's pity-pleading strains.
My friend, and thou, our sister! we have learnt
A different love: we may not thus profane
Nature's sweet voices, always full of love
And joyance! 'Tis the *merry* nightingale
That crowds and hurries and precipitates
With fast-thick warble his delicious notes,
As he were fearful that an April night
Would be too short for him to utter forth
His love-chant and disburden his full soul
Of all its music!'

Little now remains to be said. We have laid before the reader specimens of the two contending opinions, as well as of that which is set up as a golden mean between them; and he has but to put down our pages, and to walk forth—provided he does not live too far north, or in some smoke-poisoned town—to judge for himself as to the true character of the strains. Small risk, we think, would there be in pronouncing on which side his verdict would be given! Well do we remember the night when we first heard this sweet bird: how we listened and refused to believe—for we were young, and our idea had of course been that his song was a melancholy one—that those madly hilarious sounds could come from the mournful nightingale. Wordsworth attempts thus to account for the delusion under which the older poets laboured on this subject:

'Fancy, who leads the pastimes of the glad,
Full oft is pleased a wayward dart to throw,
Sending sad shadows after things not sad,
Peopling the harmless fields with sighs of wo.
Beneath her sway, a simple forest cry

Becomes an echo of man's misery.
What wonder? at her bidding ancient lays
Steeped in dire grief the voice of Philomel,
And that blithe messenger of summer days,
The swallow, twittered, subject to like spell.'

It is curious that the people who first fixed the stigma of melancholy upon our bird—the Greeks, or at least the Athenians, and it is of them we speak—were perhaps the very gayest people that ever danced upon the earth—absolute Frenchmen. The very sprightliness of their temper, however, by the universally prevailing law of contrast, may have induced in them a fondness for sad and doleful legends; and we confess, for our own part, that while we from our hearts admire the poetical beauty and elegance of their various fables, we do not a little disrelish the constant vein of melancholy which pervades them all. Not the least sad of their fictions is that which relates to the nightingale; a story that has found its way—and even more universally the opinion of the bird's music which it implied—amongst all the nations whom Greece has instructed and civilised.

But we have yet another reply to the question, 'Why do most people call the nightingale's a melancholy song?' It is heard by night, 'whilst our spirits are attentive,' and the solemn gloom of the hour influences the judgment of the ear; for another false impression, which like the monster Error of Spenser, has bred a thousand young ones as ill-favoured as herself, ascribes melancholy to night. There is no good reason why we should think thus of the night, still less that the impression should influence our judgment in other matters; and we owe no small thanks to those who have endeavoured to reclaim to their proper uses these misdirected associations, and to teach, that

'In nature there is nothing melancholy;'

but on the contrary,

'Healing her wandering and distempered child,
She pours around her softest influences,
Her sunny hues, fair forms, and breathing sweets,
Her melodies of woods, and winds, and waters,

Till he relent, and can no more endure
To be a jarring and a dissonant thing
Amid the general dance and harmony;
But, bursting into tears, wins back his way,
His angry spirit healed and harmonised
By the benignant touch of love and beauty.'

FOOTNOTES:

[2] *Note by Coleridge.*—"The passage in Milton possesses an excellence far superior to that of mere description. It is spoken in the character of the Melancholy Man, and has, therefore, a dramatic propriety. The author makes this remark, to rescue himself from the charge of having alluded with levity to a line of Milton's."

THE TEA-COUNTRIES OF CHINA.

[Return to Table of Contents](#)

ABOUT four years ago, Mr Fortune, author of *Three Years' Wanderings in the Northern Provinces of China*, was deputed by the East India Company to proceed to China for the purpose of obtaining the finest varieties of the tea-plant, as well as native manufacturers and implements, for the government tea-plantations in the Himalaya. Being acquainted with the Chinese language, and adopting the Chinese costume, he penetrated into districts unvisited before by Europeans—excepting, perhaps, the Catholic missionaries—exciting no further curiosity as to his person or pedigree, than what was due to a stranger from one of the provinces beyond the great wall. His principal journeys were to Sung-lo, the great green-tea district, and to the Bohea Mountains, the great black-tea district; besides a flying visit to Kingtang, or Silver Island, in the Chusan archipelago. The narrative, which he has since published,^[3] manifests a good faculty for observation; but travelling as privately as possible, he saw little but the exterior aspects of the country, the appearance of which he describes very graphically. As a botanist, he had a keen eye for everything which promised to enlarge our knowledge of the Chinese flora, and discovered many useful and ornamental trees and shrubs, some of which, such as the funereal cypress, will one day produce a striking and beautiful effect in our English landscape, and in our cemeteries. Of social and political information relative to the Celestial Empire, the book is quite barren; and we do not know that there is anything in it which will be so acceptable to the reader, as fresh and reliable information about his favourite beverage. To this, therefore, our attention will be confined.

The plant in cultivation about Canton, from which the Canton teas are made, is known to botanists as the *Thea bohea*; while the more northern variety, found in the green-tea country, has been called *Thea viridis*. The first appears to have been named upon the supposition, that all the black teas of the Bohea Mountains were obtained from this species; and the second was called *viridis*, because it furnished the green teas of commerce.

These names seem to have misled the public; and hence many persons, until a few years ago, firmly believed that black tea could be made only from *Thea bohea*, and green tea only from *Thea viridis*. In his *Wanderings in China*, published in 1846, Mr Fortune had stated that both teas could be made from either plant, and that the difference in their appearance depended upon manipulation, and upon that only. But the objection was made, that although he had been in many of the tea-districts near the coast, he had not seen those greater ones inland which furnish the teas of commerce. Since that time, however, he has visited them, without seeing reason to alter his statements. The two kinds of tea, indeed, are rarely made in the same district; but this is a matter of convenience. Districts which formerly were famous for black teas, now produce nothing but green. At Canton, green and black teas are made from the *Thea bohea* at the pleasure of the manufacturer, and according to demand. When the plants arrive from the farms fresh and cool, they dry of a bright-green colour; but if they are delayed in their transit, or remain in a confined state for too long a period, they become heated, from a species of spontaneous fermentation; and when loosened and spread open, emit vapours, and are sensibly warm to the hand. When such plants are dried, the whole of the green colour is found to have been destroyed, and a red-brown, and sometimes a blackish-brown result is obtained. 'I had also noticed,' says Mr Warrington, in a paper read by him before the Chemical Society, 'that a clear infusion of such leaves, evaporated carefully to dryness, was not all undissolved by water, but left a quantity of brown oxidised extractive matter, to which the denomination *apothem* has been applied by some chemists; a similar result is obtained by the evaporation of an infusion of black tea. The same action takes place by the exposure of the infusions of many vegetable substances to the oxidising influence of the atmosphere; they become darkened on the surface, and this gradually spreads through the solution, and on evaporation, the same oxidised extractive matter will remain insoluble in water. Again, I had found that the green teas, when wetted and redried, with exposure to the air, were nearly as dark in colour as the ordinary black teas. From these observations, therefore, I was induced to believe, that the peculiar characters and chemical differences which distinguish black tea from green, were to be attributed to a species of heating or fermentation, accompanied with oxidation by exposure to the air, and not to its being submitted to a higher temperature in the process of drying, as had been generally

concluded. My opinion was partly confirmed by ascertaining from parties conversant with the Chinese manufacture, that the leaves for the black teas were always allowed to remain exposed to the air in mass for some time before they were roasted.'

This explanation by Mr Warrington from scientific data, is confirmed by Mr Fortune from personal observation, and fully accounts, not only for the difference in colour between the two teas, but also for the effect produced on some constitutions by green tea, such as nervous irritability, sleeplessness, &c.; and Mr Fortune truly remarks, that what Mr Warrington observed in the laboratory of Apothecaries' Hall, may be seen by every one who has a tree or bush in his garden. Mark the leaves which are blown from trees in early autumn; they are brown, or perhaps of a dullish green when they fall, but when they have been exposed for some time in their detached state to air and moisture, they become as black as our blackest teas. Without detailing the whole process in the manufacture of either kind of tea, it may be stated in reference to green tea, *1st*, That the leaves are roasted almost immediately, after they are gathered; and *2d*, That they are dried off quickly after the rolling process. In reference to black tea, on the other hand, it may be observed, *1st*, That after being gathered, the leaves are exposed for a considerable time; *2d*, That they are tossed about until they become soft and flaccid, and are then left in heaps; *3d*, That after being roasted for a few minutes and rolled, they are exposed for some hours to the air in a soft and moist state; and *4th*, That they are at last dried slowly over charcoal fires. After all, then, genuine green tea is, as might reasonably be conjectured, an article less artificial than black. There is, at the same time, too much foundation for the suspicion, that the green teas so much patronised in Europe and America, are not so innocently manufactured. Mr Fortune witnessed the process of colouring them in the Hung-chow green-tea country, and describes the process. The substance used is a powder consisting of four parts of gypsum and three parts of Prussian blue, which was applied to the teas during the last process of roasting.

'During this part of the operation,' he says, 'the hands of the workmen were quite blue. I could not help thinking, that if any green-tea drinkers had been present during the operation, their taste would have been corrected, and, I may be allowed to add, improved. One day, an English gentleman in Shang-

hae, being in conversation with some Chinese from the green-tea country, asked them what reasons they had for dyeing the tea, and whether it would not be better without undergoing this process. They acknowledged that tea was much better when prepared without having any such ingredients mixed with it, and that they never drank dyed teas themselves; but justly remarked, that as foreigners seemed to prefer having a mixture of Prussian blue and gypsum with their tea, to make it look uniform and pretty, and as these ingredients were cheap enough, the Chinese had no objections to supply them, especially as such teas always fetched a higher price! The quantity of colouring matter used is rather more than an ounce to 14½ lbs. of tea; so that in every 100 lbs. of coloured green tea consumed in England or America, the consumer actually drinks nearly half a pound of Prussian blue and gypsum! Samples of these ingredients, procured from the Chinamen in the factory, were sent last year to the Great Exhibition.

In the black-tea districts, as in the green, large quantities of young plants are yearly raised from seeds. These seeds are gathered in the month of October, and kept mixed up with sand and earth during the winter months. In this manner they are kept fresh until spring, when they are sown thickly in some corner of the farm, from which they are afterwards transplanted. When about a year old, they are from nine inches to a foot in height, and ready for transplanting. This is always done at the change of the monsoon in spring, when fine warm showers are of frequent occurrence. The most favourable situations are on the slopes of the hills, as affording good drainage, which is of the utmost importance; and which, on the plains, is attained by having the lands above the watercourses. Other things being equal, a moderately rich soil is preferred. They are planted in rows about four feet apart (in poor soils, much closer), and have a very hedge-like appearance when full grown. A plantation of tea, when seen at a distance, looks like a little shrubbery of evergreens. As the traveller threads his way amongst the rocky scenery of Woo-e-shan, he is continually coming upon these plantations, which are dotted upon the sides of all the hills. The leaves are of a rich dark-green, and afford a pleasing contrast to the strange, and often barren scenery which is everywhere around. The young plantations are generally allowed to grow unmolested for two or three years, till they are strong and healthy; and even then, great care is exercised not to exhaust the plants by plucking them too bare. But, with every care, they ultimately become

stunted and unhealthy, and are never profitable when they are old; hence, in the best-managed tea-districts, the natives yearly remove old plantations, and supply their places with fresh ones. About ten or twelve years is the average duration allowed to the plants. The tea-farms are in general small, and their produce is brought to market in the following manner: A tea-merchant from Tsong-gan or Tsin-tsun, goes himself, or sends his agents, to all the small towns, villages, and temples in the district, to purchase teas from the priests and small farmers. When the teas so purchased are taken to his house, they are mixed together, of course keeping the different qualities as much apart as possible. By this means, a chop (or parcel) of 600 chests is made; and all the tea of this chop is of the same description or class. The large merchant in whose hands it is now, has to refine it, and pack it for the foreign market. When the chests are packed, the name of the chop is written upon each, or ought to be; but it is not unusual to leave them unmarked till they reach the port of exportation, when the name most in repute is, if possible, put upon them. When the chop is purchased in the tea-district, a number of coolies are engaged to carry the chests on their shoulders, either to their ultimate destination, or to the nearest river. The time occupied in the entire transport by land and river, from the Bohea country to Canton, is about six weeks or two months. The expenses of transit, of course, vary with localities, and other circumstances; but, in general, those expenses are so very moderate, that the middlemen realise large profits, while the small farmers and manipulators are subjected to a grinding process, which keeps them in comparative poverty.

Of late years, some attempts have been made to cultivate the tea-shrub in America and Australia; but the result will not equal the expectation entertained by the projectors of the scheme. The tea-plant will grow wherever the climate and soil are suitable; but labour is so much cheaper in China than in either of those countries, that successful competition is impossible. The Chinese labourers do not receive more than twopence or threepence a day. The difference, therefore, in the cost of labour will afford ample protection to the Chinese against all rivals whose circumstances in this respect are not similar to their own.

India, however, is as favourably situated in all respects for tea-cultivation as China itself, and its introduction, therefore, into that country is a matter of

equal interest and importance. In procuring the additional seeds, implements, and workmen, Mr Fortune succeeded beyond his expectations. Tea-seeds retain their vitality for a very short period, if they are out of the ground; and after trying various plans for transporting them to their destination, he adopted the method of sowing them in Ward's cases soon after they were gathered, which had the effect of preserving them in full life. The same plan will answer as effectually in preserving other kinds of seeds intended for transportation, and in which so much disappointment is generally experienced. In due time, all the cases arrived at their destination in perfect safety, and were handed over to Dr Jameson, the superintendent of the botanical gardens in the north-west provinces, and of the government tea-plantations. When opened, the tea-plants were found to be in a very healthy state. No fewer than 12,838 plants were counted, and many more were germinating. Notwithstanding their long voyage from the north of China, and the frequent transshipment and changes by the way, they seemed as green and vigorous as if they had been growing all the while on the Chinese hills.

In these days, when tea is no longer a luxury, but a necessary of life in England and her colonies, its production on Indian soil is worthy of persevering effort. To the natives of India themselves, it would be of the greatest value. The poor *paharie*, or hill-peasant, has scarcely the common necessities of life, and certainly none of its luxuries. The common sorts of grain which his lands produce will scarcely pay the carriage to the nearest market-town, far less yield such a profit as to enable him to procure any articles of commerce. A common blanket has to serve him for his covering by day and for his bed at night, while his dwelling-house is a mere mud-hut, capable of affording but little shelter from the inclemency of the weather. If part of these lands produced tea, he would then have a healthy beverage to drink, besides a commodity which would be of great value in the market. Being of small bulk, and extremely light in proportion to its value, the expense of carriage would be trifling, and he would have the means of making himself and his family more comfortable and more happy. In China, tea is one of the necessities of life, in the strictest sense of the word. A Chinese never drinks cold water, which he abhors, and considers unhealthy. Tea is his favourite beverage from morning to night—not what we call tea, mixed with milk and sugar—but the essence of the herb itself drawn out in

pure water. Those acquainted with the habits of the people, can scarcely conceive of their existence, were they deprived of the tea-plant; and there can be no doubt that its extensive use adds much to their health and comfort. The people of India are not unlike the Chinese in many of their habits. The poor of both countries eat sparingly of animal food; rice, and other grains and vegetables, form the staple articles on which they live. This being the case, it is not at all unlikely that the Indian will soon acquire a habit which is so universal in China. But in order to enable him to drink tea, it must be produced at a cheap rate, not at 4s. or 6s. a pound, but at 4d. or 6d.; and this can be done, but only on his own hills. The accomplishment of this would be an immense boon for the government to confer upon the people, and might ultimately work a constitutional change in their character and temperament—ridding them of their proverbial indolence, and endowing them with that activity of body and mind which renders the Chinese so un-Asiatic in their habits and employments.

That our readers may, if they choose, have 'tea as in China,' we quote a recipe from a Chinese author, which may be of service to them. 'Whenever the tea is to be infused for use,' says Tüing-po, 'take water from a running stream, and boil it over a lively fire. It is an old custom to use running water boiled over a lively fire; that from springs in the hills is said to be the best, and river-water the next, while well-water is the worst. A lively fire is a clear and bright charcoal fire. When making an infusion, do not boil the water too hastily, as first it begins to sparkle like crabs' eyes, then somewhat like fish's eyes, and lastly, it boils up like pearls innumerable, springing and waving about. This is the way to boil the water.' The same author gives the names of six different kinds of tea, all of which are in high repute. As their names are rather flowery, they may be quoted for the reader's amusement. They are these: the 'first spring tea,' the 'white dew,' the 'coral dew,' the 'dewy shoots,' the 'money shoots,' and the 'rivulet garden tea.' 'Tea,' says he, 'is of a cooling nature, and, if drunk too freely, will produce exhaustion and lassitude. Country people, before drinking it, add ginger and salt, to counteract this cooling property. It is an exceedingly useful plant; cultivate it, and the benefit will be widely spread; drink it, and the animal spirits will be lively and clear. The chief rulers, dukes, and nobility, esteem it; the lower people, the poor and beggarly, will not be destitute of it; all use it daily, and like it.' Another author upon tea says, that 'drinking it tends to

clear away all impurities, drives off drowsiness, removes or prevents headache, and it is universally in high esteem.'

FOOTNOTES:

[\[3\]](#) *A Journey to the Tea-Countries of China*. By Robert Fortune. 1852.

THE GREAT OYER OF POISONING.

[Return to Table of Contents](#)

IN a previous article, an account was given of the proceedings against the Earl and Countess of Somerset for the murder of Sir Thomas Overbury. Though they were spared, several other persons were executed for this offence; and the circumstances under which those who were represented as the chief criminals escaped, while the others, whose guilt was represented as merely secondary, were executed, is among the most mysterious parts of the history. There was so much said about poisoning throughout the whole inquiry, that Sir Edward Coke gave the trials the name of 'The Great Oyer of Poisoning.' Oyer has long been a technical term in English law; and it is almost unnecessary to explain, that it is old French for *to hear*—*oyer and terminer* meaning, to hear and determine. The same inscrutable reasons which make the evidence so imperfect against the chief offenders, affect the whole of it. But while the exact causes of the death of Sir Thomas Overbury may be left in doubt, as well as the motives which led to it, enough is revealed in the trials of the minor offenders to throw a remarkable light on the strange habits of the time, and especially on the profligacy and credulity of the court of King James.

The first person put to trial was Richard Weston, who had been appointed for the purpose of taking charge of Sir Thomas Overbury. If he had been murdered by poison, there could be no doubt that Weston was one of the perpetrators. He had been brought up as an apothecary; and it was said that he was selected on account of his being thus enabled to dabble in poisons. The charge against him is very indistinct. He was charged that he, 'in the Tower of London, in the parish of Allhallows Barking, did obtain and get into his hand certain poison of green and yellow colour, called rosalgar—knowing the same to be deadly poison—and the same did maliciously and feloniously mingle and compound in a kind of broth poured out into a certain dish.' Weston long refused to plead to the indictment. Of old, a person could not be put on trial unless he pleaded not guilty, and demanded a trial. The law, however, provided for those who were obstinate a more

dreadful death than would be inflicted on the scaffold. To frighten him into compliance, the court gave him a description of it, telling him that he was 'to be extended, and then to have weights laid upon him no more than he was able to bear, which were by little and little to be increased; secondly, that he was to be exposed in an open place near to the prison, in the open air, being naked; and lastly, that he was to be preserved with the coarsest bread that could be got, and water out of the next sink or puddle.' He was told that 'oftentimes men lived in that extremity eight or nine days.' People have sometimes endured the *peine forte et dure*, as it was called, because, unless they pleaded and were convicted, their estates were not forfeited; and they endured the death of protracted torture for the sake of their families. Weston's object was supposed to be to prevent a trial, the evidence in which would expose his great patrons the Earl and Countess of Somerset. The motive was not, however, strong enough to make him stand to his purpose. He pleaded to the indictment, was found guilty, and executed at Tyburn.

The next person brought up was of a more interesting character—Anne Turner, the widow of a physician. It is stated in the Report, that when she appeared at the bar, the chief-justice Coke said to her: 'that women must be covered in the church, but not when they are arraigned, and so caused her to put off her hat; which done, she covered her hair with her handkerchief, being before dressed in her hair with her handkerchief over it.' Although Mother Turner's pursuits were of the questionable kind generally attributed to old hags—she dealt in philters, soothsaying, and poisoning—she must have been a young and beautiful woman. In some of the letters which were produced at the trials, she was called 'Sweet Turner.' In a poem, called *Overbury's Vision*, published in 1616, and reprinted in the seventh volume of the Harleian Miscellany, she is thus enthusiastically described—

'It seemed that she had been some gentle dame;
For on each part of her fair body's frame
Nature such delicacy did bestow,
That fairer object oft it doth not shew.
Her crystal eye, beneath an ivory brow,
Did shew what she at first had been; but now
The roses on her lovely cheeks were dead;
The earth's pale colour had all overspread

Her sometime lovely look; and cruel Death,
Coming untimely with his wintry breath,
Blasted the fruit which, cherry-like in show,
Upon her dainty lips did whilome grow.
Oh, how the cruel cord did misbecome
Her comely neck! And yet by law's just doom
Had been her death.'

It might be said to be Mrs Turner's profession, to minister to all the bad passions of intriguers. The wicked Countess of Essex employed her to secure to her, by magic arts and otherwise, the affection of Somerset, and at the same time to create alienation and distaste on the part of her husband. Among the documents produced at her trial was one said to be a list of 'what ladies loved what lords;' and it is alleged that Coke prohibited its being read, because, whenever he cast his eye on it, he saw there the name of his own wife. Some mysterious articles were produced at the trial, which were believed to be instruments of enchantment and diabolical agency. 'There were also enchantments shewed in court, written in parchment, wherein were contained all the names of the blessed Trinity mentioned in the Scriptures; and in another parchment + B + C + D + E; and in a third, likewise in parchment, were written all the names of the holy Trinity, as also a figure, on which was written this word, *corpus*; and on the parchment was fastened a little piece of the skin of a man. In some of these parchments were the devil's particular names, who were conjured to torment the Lord Somerset, and Sir Arthur Manwaring, if their loves should not continue, the one to the Countess, the other to Mrs Turner.' Along with these were some pictures, as they were termed, or, more properly speaking, models of the human figure. 'At the shewing,' says the report, 'of these, and enchanted papers, and other pictures in court, there was heard a crack from the scaffolds, which caused great fear, tumult, and confusion among the spectators, and throughout the hall, every one fearing hurt, as if the devil had been present, and grown angry to have his workmanship shewed by such as were not his own scholars.'^[4]

The small figures, which appeared to have created the chief consternation, were, we are inclined to believe, very innocent things. There was, it is true, a belief that an individual could be injured or slain by operations on his

likeness. There was, however, another purpose connected with Mrs Turner's pursuits to which small jointed images, like artists' lay figures, were used. This was to exhibit the effect of any new fashion, or peculiar style of dress. In this manner small figures, about the size of dolls, were long used in Paris. We have seen people expressing their surprise at pictures of full-grown Frenchwomen examining dolls, but in reality they were not more triflingly occupied than those who now contemplate the latest fashions in their favourite feminine periodical. Mrs Turner was very likely to have occasion for such figures, for she was, with her other pursuits, a sort of dressmaker, or *modiste*; in fact, she seems to have been a ready minister to every kind of human vanity and folly, as well as to a good deal of human wickedness. In the department of dress, she had a name in her own sex and age as illustrious as that of Brummel among dandies in the beginning of this century. As he was the inventor of the starched cravat, she was his precursor in the invention of the starched ruff, or, as it is generally said, of the yellow starch.

The best account we have of the starched ruff is by a man who wrote to abuse it. An individual named Stubbes published an *Anatomy of Abuses*. Having become extremely rare, a small impression of it was lately reprinted, as a curious picture of the times. Stubbes dealt trenchantly with everything that savoured of pride and ostentation in dress; and he was peculiarly severe on Mrs Turner's invention, which made the ruff stand against bad weather. He describes the ruffs as having been made 'of cambric Holland lawn; or else of some other the finest cloth that can be got for money, whereof some be a quarter of a yard deep; yea, some more—very few less.' He describes with much glee the elementary calamities to which, before the invention of the starch, they were liable. 'If Æolus with his blasts, or Neptune with his storms, chance to hit upon the crazy barque of their bruised ruffs, then they goeth flip-flap in the wind, like rags that flew abroad, lying upon their shoulders like the dish-clout of a slut.' Having thus, with great exultation, described these reproofs to human pride, he mentions how 'the devil, as he, in the fulness of his malice, first invented these great ruffs, so hath he now found out also two great pillars to bear up and maintain this his kingdom of great ruffs—for the devil is king and prince over all the kingdom of pride.' One pillar appears to have been a wire framework—something, perhaps, of the nature of the hoop. The other was

'a certain kind of liquid matter, which they call starch, wherein the devil hath willed them to wash and dye their ruffs well; and this starch they make of divers colours and hues—white, red, blue, purple, and the like, which, being dry, will then stand stiff and inflexible about their necks.'

Mrs Turner, at her execution, was arrayed in a ruff stiffened with the material for the invention of which she was so famous. She had for her scientific adviser a certain Dr Forman—a man who was believed to be deep in all kinds of dangerous chemical lore, and at the same time to possess a connection with the Evil One, which gave him powers greater than those capable of being obtained through mere scientific agency. Had he been alive, he would have undoubtedly been tried with the other poisoners. His widow gave some account of his habits, and of his wonderful apparatus, such as 'a ring which would open like a watch;' but the glimpse obtained of him is brief and mysteriously tantalising. We remember that, about twenty-five years ago, this man was made the hero of a novel called *Forman*, which contains much effective writing, but did not somehow fit the popular taste.

Notwithstanding the scientific ingenuity both of the males and females concerned in this affair, the poisoning seems to have been conducted in a very bungling manner when compared with the slow and secret poisonings of the French and Italians. It is believed that a female of Naples, called Tophana, who used a tasteless liquid, named after her *Aqua Tophana*, killed with it 600 people before she was discovered to be a murderess. The complete secrecy in which these foreigners shrouded their operations—people seeming to drop off around them as if by the silent operation of natural causes—was what made their machinations so frightful. Poisoning, however, is a cowardly as well as a cruel crime, which has never taken strong root in English habits; and, as we have observed, the poisoners on this occasion, notwithstanding the skill and knowledge enlisted by them in the service, were arrant bunglers. Thus, the confession of James Franklin, an accomplice, would seem to shew that Sir Thomas Overbury was subjected to poisons enough to have deprived three cats of their twenty-seven lives.

'Mrs Turner came to me from the countess, and wished me, from her, to get the strongest poison I could for Sir T. Overbury. Accordingly, I bought seven—viz., aquafortis, white arsenic, mercury, powder of diamonds, *lapis costitus*, great spiders, and cantharides. All these were given to Sir T. Overbury at several times. And further confesseth, that the lieutenant knew of these poisons; for that appeared, said he, by many letters which he writ to the Countess of Essex, which I saw, and thereby knew that he knew of this matter. One of these letters I read for the countess, because she could not read it herself; in which the lieutenant used this speech: "Madam, the scab is like the fox—the more he is cursed, the better he fareth." And many other speeches. Sir T. never eat white salt, but there was white arsenic put into it. Once he desired pig, and Mrs Turner put into it *lapis costitus*. The white powder that was sent to Sir T. in a letter, he knew to be white arsenic. At another time, he had two partridges sent him by the court, and water and onions being the sauce, Mrs Turner put in cantharides instead of pepper; so that there was scarce anything that he did eat but there was some poison mixed.'

[5]

It is impossible to believe that the human frame could stand out for weeks against so hot a siege. It would appear as if Franklin must really have confessed too much. It has already been said, that the confused state of the whole evidence renders it difficult to find how far a case was made out against the Earl and Countess of Somerset. Such a confession as Franklin's only makes matters still more confused. That Sir Thomas Overbury really was poisoned, one can scarcely doubt, if even a portion of what Franklin and the others say is true; but the reckless manner in which the crime was gone about, and the confusion of the whole evidence, is extremely perplexing. Not the least remarkable feature in this tragedy is the number of people concerned in it. We find, brought to trial, the Earl and Countess of Somerset and Sir Thomas Monson, who, though said to be the guiltiest of all, were spared: Weston, Franklin, and Mrs Turner, were executed: Forman, and another man of science who was said to have given aid, had gone to their account before the trials came on. Then, in Franklin's confession, it was stated that 'the toothless maid, trusty Margaret, was acquainted with the poisoning; so was Mrs Turner's man, Stephen; so also was Mrs Home, the countess's own handmaid;' and several other subordinate persons are alluded to in a similar manner.

The quietness and secrecy of the French and Italian poisonings have been already alluded to. The poisoners, in general, instead of acting in a bustling crowd, generally prepared themselves for their dreadful task by secretly acquiring the competent knowledge, so that they might not find it necessary to take the aid of confederates. They generally did their work alone, or at most two would act together. It certainly argues a sadly demoralised state of society in the reign of King James, that so many persons should be found who would coolly connect themselves with the work of death; but still there was not so much real danger as in the quiet, systematic poisonings of such criminals as Tophana and the Countess of Brinvilliers. The great Oyer of poisoning was, however, calculated to make a very deep impression on the public mind. It filled London with fear and suspicion. When rumours about poisonings become prevalent, no one knows exactly how far the crime has proceeded, and this and that event is remembered and connected with it. All the sudden deaths within recollection are recalled, and thus accounted for. People supposed to be adepts in chemistry were in great danger from the populace, and one man, named Lamb, was literally torn to pieces by a mob at Charing-Cross. The people began to dwell upon the death of Prince Henry, the king's eldest son, who had fallen suddenly. It was remembered that he was a youth of a frank, manly disposition—the friend and companion of Raleigh and of other heroic spirits. He liked popularity, and went into many of the popular prejudices of the times—forming altogether in his character a great contrast to his grave, dry, fastidious, and suspicious brother Charles, who was to succeed to his vacant place. He had died very suddenly—of fever, it was said; but popular rumour now attributed his death to poison. Nay, it was said that his own father, jealous of his popularity, was the perpetrator; and it was whispered that *this* was the secret which King James was so afraid his favourite Somerset might tell if prosecuted to death. In a work called *Truth brought to Light*, a copy was given of an alleged medical report on a dissection of the body, calculated to confirm these suspicions: it may be found in the *State Trials*, ii. 1002. Arthur Wilson, who published his life and reign of King James during the Commonwealth, said: 'Strange rumours are raised upon this sudden expiration of our prince, the disease being so violent that the combat of nature in the strength of youth (being almost nineteen years of age) lasted not above five days. Some say he was poisoned with a bunch of grapes; others attribute it to the venomous scent of a pair of gloves presented to him

(the distemper lying for the most part in the head.) They that knew neither of these are stricken with fear and amazement, as if they had tasted or felt the effects of those violences. Private whisperings and suspicions of some new designs afoot broaching propheticall terrors that a black Christmas would produce a bloody Lent, &c.' Kennet, in his notes on Wilson's work, says that he possesses a rare copy of a sermon preached while the public mind was thus excited, 'wherein the preacher, who had been his domestic chaplain, made such broad hints about the manner of his (Prince Henry's) death, that melted the auditory into a flood of tears, and occasioned his being dismissed the court.'

But suspicion did not stop here. When King James himself died in much pain, his body shewing the unsightly symptoms consequent on his gross habits, poison was again suspected; and as it had been said on the former occasion, that the father had connived at the death of his son, it was now whispered that the remaining son, anxious to commence his ill-starred reign, was accessory to hurrying his father from the world. The moral character of Charles I. is sufficient to acquit him of such a charge. But historians even of late date have not entirely acquitted his favourite, Buckingham, who, it was said, finding that the king was tired of him, resolved to make him give place to the prince, in whose good graces he felt secure. The authors of the scandalous histories published during the Commonwealth, said that the duke's mother administered the poison externally in the form of a plaster.

FOOTNOTES:

[4] *State Trials*, ii. 932.

[5] *State Trials*, 941.

NEURALGIA.[6]

[Return to Table of Contents](#)

OBSTRUCTIVES and sceptics are in one sense benefactors: although they do not generally originate improved modes of thought and action, they at least prevent the adoption of crude theories and ill-digested measures. To meet the criticism of these opponents, inventive genius must more carefully bring its ideas and plans to the test of practical experiment and thorough investigation; and as truth must ultimately prevail, it cannot be considered unjust or injurious to insist upon its presenting its credentials. This is, we submit, one of the benefits resulting from schools, colleges, and guilds: it is difficult to impress them with novel truths; but in a great degree they act as breakwaters to the waves of error. In no department of social life is this doctrine better illustrated than in the medical profession, which is among the keenest and most sceptical of bodies in scrutinising novelty; but it has rarely allowed any real improvement to remain permanently untested and unadopted. We believe this to be the fair view to take of a class of scientific men who have certainly had a large share of sarcasm to endure.

General readers, for whom we profess to cater, take no great interest in medical subjects and discussions; but as historians of what is doing in the world of art, science, and literature, we think it our duty to record, in a brief way, any information we can collect that may be beneficial to the suffering portion of humanity; and in this 'miserable world' it is most probable that one-fourth part of our readers are invalids. Why should they not have their little troubles, whims, and maladies studied and cared for? The disease which gives a title to this short notice is perhaps one of the most mysterious and vexatious to which our nature is liable; both its cause and cure are equally occult, and its *modus operandi* is scarcely intelligible. A contemporary thus playfully alludes to the subject in terms more funny than precise:—"What is neuralgia? A nervous spasm, the cause of which has, however, not been satisfactorily and conclusively demonstrated; but we may, perhaps, obtain a clearer view of its nature, if we look upon it as connected with "morbid nutrition." Every one knows that the system is, or

ought to be, constantly subject to a law of waste and repair; and if the operation of this law is impeded by "cold," "mental excitement," or any other baneful condition, diseases more or less unpleasant must ensue. The *vis naturæ* uses certain particles of matter in forming nerves; others in forming membrane, bones, juices, &c.; while used-up particles are expelled altogether from the system. We can readily conceive that each order of atoms is used by a distinct function, and has a different mission; and any morbid perversion or mingling of their separate destinies must end in disorder and suffering—nature's violent endeavour to restore the regularity of her operations. A cough is simply an effort of the lungs or bronchiæ to remove some offending intruder that ought to be doing duty elsewhere; and may we not call neuralgia *a cough of a nerve* to get rid of a disagreeable oppression—nature's legitimate *coup d'état* to put down and transport those "red socialist" particles that would interfere with the regularity of its constitution? Let us fancy, for a moment, a delicate little army of atoms marching obediently along, to form new nerve in place of the substance that is wasting away: another little army of carbonaceous particles have just received orders to pack up their luggage and be off, to make way for the advancing nerve-battalion; but in their exodus they are met by a fierce destroyer, in the shape of an east wind—a Caffre that suddenly throws the ranks of General Carbon into disorder, and drives them back upon the brilliant and pugnacious array of General Nerve: a battle-royal is the result. General Nerve immediately places lance in rest, and advances to the charge with the unsparing war-cry of: "Mr Ferguson, you don't lodge here!" and if Caffre East-wind is not despised and trifled with, he is generally beaten for a time; but great are the sufferings of humanity—the scene of this encounter—while the fight is raging.'

Now comes the question: How to get rid of this cruel invader? Dr Downing has undertaken to give an answer, which we believe to be satisfactory. In addition to the proper medical and hygienic treatment, which is carefully and ably stated in the work before us, Dr Downing has invented an apparatus which appears to be very efficacious; and we will therefore allow him to describe it in his own words:—'From considering tic douloureux as often a local disease, depending on a state of excessive irritability, sensibility, or spasm of a particular nerve, and from reflecting upon its causes, and observing the effect of topical sedatives, I was led to the

conclusion, that the most direct way of quieting this state was by the application of warmth and sedative vapour to the part, so as to soothe the nerves, and calm them into regular action. For this purpose, I devised an apparatus which answers the purpose sufficiently well. It is a kind of fumigating instrument, in which dried herbs are burned, and the heated vapour directed to any part of the body. It is extremely simple in construction, and consists essentially of three parts with their media of connection—a cylinder for igniting the vegetable matter, bellows for maintaining a current of air through the burning material, and tubes and cones for directing and concentrating the stream of vapour. The chief medicinal effects I have noticed in the use of this instrument are those of a sedative character; but its remedial influence is not alone confined to the use of certain herbs. A considerable power is attributable to the warm current or intense heat generated. When the vegetable matter is ignited, and a current of air is made to pass through the burning mass, a small or great degree of heat can be produced at pleasure. Thus, when the hand is gently pressed upon the bellows, a mild, warm stream of vapour is poured forth which may act as a *douche* to irritable parts; but by strongly and rapidly compressing the same receptacle, the fire within the cylinder is urged like that of a smith's forge, and the blast becomes intensely hot and burning.'

Those who wish to know more of this mode of treatment, had better refer to the work itself. We must content ourselves with having simply drawn our readers' attention to it.

FOOTNOTES:

[6] *Neuralgia: its various Forms, Pathology, and Treatment.* Being the Jacksonian Prize Essay of the Royal College of Surgeons for 1850; with some Additions. By C. Toogood Downing, M.D., M.R.C.S. Churchill, London.

ANCIENT GLACIERS IN THE LAKE COUNTRY.

[Return to Table of Contents](#)

MR ROBERT CHAMBERS, in a recent tour of the lakes of Westmoreland (April 1852), has discovered that the valleys of that interesting district were at one time occupied by glaciers. Glacialised surfaces were previously observed in a few places not far from Kendal, but without any conclusion as to the entire district. By Mr Chambers conspicuous and unequivocal memorials of ice-action have been found in most of the great central valleys, such as those of Derwentwater, Ulleswater, Thirlwater, and Windermere. The principal phenomena are rounded hummocks of rock on the skirts of the hills, and in the middle of the valleys; and as these hummocks, whatever may be the direction of the valleys, invariably present a smoothed side up, and an abrupt side downwards (*stoss-seite* and *lee-seite* of the Scandinavian geologists), it becomes certain that the glaciers proceeding from the mountains at the upper extremities were local to the several valleys. The smoothed hummocks are very noticeable in Derwentwater or Borrowdale, the celebrated Bowderstone resting on one; a particularly fine low surface appears at Grange, near the head of the lake. At Patterdale, in Ulleswater Valley, the rocks are so much marked in this manner, that the whole place bears a striking resemblance to the sterile parts of Sweden; and some small rocky islets, near the head of the lake, are unmistakable *roches moutonnées*. The two valleys descending in opposite directions from Dunmail Raise, have had glaciers proceeding from some central point: in that of Thirlwater, the rounded hummocks are conspicuous at Armboth; in the other, near Grasmere, and near the Windermere Railway Station. In all these cases, the characteristic striation, or scratching produced on rock-surfaces by glaciers, is more or less distinct, according as the surface may have been protected in intermediate ages. Where any drift or alluvial formation has covered it, the polish and striation are as perfect as if they had been formed in recent times, and the lines are almost invariably in the general direction of the valley.

Printed and Published by W. and R. CHAMBERS, High Street, Edinburgh.
Also sold by W. S. ORR, Amen Corner, London; D. N. CHAMBERS, 55 West Nile Street, Glasgow; and J. M'GLASHAN, 50 Upper Sackville Street, Dublin.
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